

Sample_Medium_Priority_FIR.pdf

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MEDIUM PRIORITY

Parties in the Dispute

Arun Kumar, Property Involved

Plain-Language Summary

Sample First Information Report (FIR) FIR No.: 2026/MP/0147 Date & Time of Report: 04 August 2026, 17:30 Police Station: Central City Police Station Case Priority: Medium Sections Invoked: Illustrative only: Theft and property damage related provisio Initial Police Action: Crime scene documented, CCTV footage requested, fingerprints to be collected, nearby patrol units alerted, FIR registered and investigation initiated. This falls under Property/Land as it involves property disputes, land matters, tenancy, or ownership issues. Primary constitutional articles engaged: Article 300A, Article 14, Article 21.

Case Classification

Legal Category	Property/Land
Case Type	Property
Severity	No Injury
Vulnerability	Low
Influence	High

Constitutional Articles Applied

Article 300A

Primary

Right to Property

Article 14

Primary

Equality Before Law

Article 21

Primary

Protection of Life and Personal Liberty

Article 39

Secondary

Certain Principles of Policy to be Followed by the State

Article 46

Secondary

Promotion of Educational and Economic Interests of Weaker Sections

Article 243G

Secondary

Powers and Responsibilities of Panchayats

Legal Summary

Under Article 300A, no person shall be deprived of property except by authority of law. The State must ensure that land acquisition, eviction, and possession proceedings follow due process. When land disputes involve the homeless, tenants, or agricultural labourers, the right to livelihood under Article 21 is also engaged, requiring heightened judicial protection.

Priority Rules Applied

****RULE 1 — No Physical Injury → Standard Priority:**** Article 21 (right to life) is not directly engaged through physical harm. Priority is determined by other factors. ****RULE 3 — Power Imbalance → Ensure**

Level Playing Field (Article 14):** A significant power imbalance between parties triggers Article 14's equality guarantee. The court must take active measures to prevent the influential party from exploiting its position. **RULE 4 — Property/Land Dispute → Article 300A & Livelihood:** Article 300A protects property rights. If livelihood (Article 21) is affected, priority should be elevated accordingly. **FINAL DETERMINATION:** Based on the above constitutional rules and the extracted case features, the priority assigned is **Medium**. This determination represents the impartial state's assessment of the urgency required to ensure that constitutional rights are protected and justice is delivered without undue delay.

Property and land disputes primarily affect economic and possessory rights. However, when they involve the right to shelter or livelihood (Article 21), priority should be elevated. Routine property disputes without violence or immediate displacement risk warrant standard queue processing.

State's Perspective

STATE'S CONSTITUTIONAL ASSESSMENT (Neutral, Unbiased Analysis from the Perspective of the Judiciary) This assessment is prepared from the standpoint of an impartial state adjudicating disputes under the Constitution of India. The analysis identifies the constitutional rights engaged, the state's corresponding duties, and the appropriate priority that a fair and unbiased judiciary should accord to this matter. ### I. SUBJECT MATTER **Parties:** Arun Kumar, Property Involved **Legal Category:** Property/Land **Brief Description:** Sample First Information Report (FIR) FIR No.: 2026/MP/0147 Date & Time of Report: 04 August 2026, 17:30 Police Station: Central City Police Station Case Priority: Medium Sections Invoked: Illustrative only: Theft and property damage related provisio Initial Police Action: Crime scene documented, CCTV footage requested, fingerprints to be collected, nearby patrol units alerted, FIR registered and investigation initiated. This falls under Property/Land as it involves property disputes, land matters, tenancy, or ownership issues. Primary constitutional articles engaged: Article 300A, Article 14, Article 21. **Extracted Parameters:** Severity = No Injury, Vulnerability = Low, Influence/Power Imbalance = High ### II. CONSTITUTIONAL RIGHTS ENGAGED The following constitutional provisions are relevant to this matter: - ****[PRIMARY]** Article 300A — Right to Property**: No person shall be deprived of his property save by authority of law. - Key principles: Protection against deprivation of property, Lawful procedure for acquisition, Right not to be dispossessed without legal authority - ****[PRIMARY]** Article 14 — Equality Before Law**: The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India. - Key principles: Equality before law, Equal protection of laws, Reasonable classification is permitted, Anti-arbitrariness - ****[PRIMARY]** Article 21 — Protection of Life and Personal Liberty**: No person shall be deprived of his life or personal liberty except according to procedure established by law. - Key principles: Right to life includes right to live with dignity, Right to a speedy trial, Right to health and medical care, Right to fair procedure, Right to safety and security, Due process and procedural fairness - ****[SECONDARY]** Article 39 — Certain Principles of Policy to be Followed by the State**: The State shall direct its policy towards securing equal rights to an adequate means of livelihood, and that the ownership and control of material resources are so distributed as best to subserve the common good. - Key principles: Adequate means of livelihood, Distribution of material resources for common good, Prevention of concentration of wealth, Protection of workers, children and women - ****[SECONDARY]** Article 46 — Promotion of Educational and Economic Interests of Weaker Sections**: The State shall promote with special care the educational and economic interests of the weaker sections of the people, and in particular of the Scheduled Castes and Scheduled Tribes, and shall protect them from social injustice and all forms of

exploitation. - Key principles: Special care for weaker sections. Protection of SC/ST from social injustice.

and exploitation - *****[SECONDARY]** Article 243G — Powers and Responsibilities of Panchayats**:

The State legislature may endow Panchayats with such powers and authority as may be necessary to enable them to function as institutions of self-government, including in matters of land, water, agriculture and rural development. - Key principles: Local self-government, Panchayat powers over land, water, agriculture ###

III. SEVERITY & URGENCY ASSESSMENT **Primary Article:** Article 14 / Article 19 / Article 300A (as applicable) **Analysis:** Where no physical injury is involved, the primary constitutional concern

shifts from Article 21 (life and liberty) to other guarantees such as Article 14 (equality), Article 19 (freedom of profession/trade), and Article 300A (property). While these rights are fundamental and must be protected, the urgency is generally lower than cases involving threats to life or physical safety. **Urgency

Classification:** Standard — rights are engaged but no immediate physical harm. ### IV. STATE'S DUTY

UNDER THE CONSTITUTION Under Article 300A, no person shall be deprived of property except by authority of law. The State must ensure that land acquisition, eviction, and possession proceedings follow due process. When land disputes involve the homeless, tenants, or agricultural labourers, the right to livelihood under Article 21 is also engaged, requiring heightened judicial protection. ### V.

VULNERABILITY & POWER BALANCE ASSESSMENT **Vulnerability Level:** Low This indicates:

['Corporate entities', 'Well-established businesses', 'Government bodies', 'Public sector undertakings', 'High net-worth individuals', 'Professional litigants'] **Constitutional Protection:** Article 14 guarantees equal

protection of laws. These parties are expected to have access to legal representation and the ability to present their case effectively. **Judicial Duty:** Standard procedural fairness applies. No special

accommodation beyond ordinary courtesies is required. **Influence Level:** High Government bodies, large corporations, regulatory authorities, or politically powerful individuals **Constitutional Concern:**

Article 14 requires equality before law. A significant power imbalance can undermine the fairness of proceedings if the influential party is able to use its resources to delay, intimidate, or out-litigate the weaker party. The court must actively ensure a level playing field. **Recommended Countermeasure:** Where

there is a power imbalance, the court should: (a) ensure the weaker party has access to legal aid if needed, (b) prevent unnecessary adjournments sought by the influential party, (c) expedite proceedings to minimise the risk of witness tampering or intimidation, and (d) consider appointing a court monitor or receiver where

appropriate. ### VI. APPLICABLE CONSTITUTIONAL DOCTRINES & PRINCIPLES - **Doctrine of Proportionality:** Any state action restricting rights must be proportionate to the aim sought — it must be

necessary, suitable, and not excessive. - Application to this case: Used to assess whether the priority

assigned is proportionate to the gravity of the rights violation. - **Principle of Natural Justice — Audi

Alteram Partem:** No person shall be condemned without being heard. The right to be heard is a

fundamental principle of justice. - Application to this case: Ensures procedural fairness in administrative and quasi-judicial proceedings. - **Doctrine of Legitimate Expectation:** A person who has a legitimate

expectation based on a promise, practice or policy of the State is entitled to procedural fairness before that expectation is defeated. - Application to this case: Applicable where administrative decisions frustrate

settled practices, licences, or policies. - **Rule of Law:** Every person, including the State, is subject to the law; no one is above it. Government action must have legal authority. - Application to this case:

Foundational principle engaged in every challenge to executive or legislative action. ### VII. PRIORITY

ASSESSMENT & JUSTIFICATION **Assigned Priority:** Medium **Category Rationale:** Property and land disputes primarily affect economic and possessory rights. However, when they involve the right to shelter or livelihood (Article 21), priority should be elevated. Routine property disputes without violence or

immediate displacement risk warrant standard queue processing. ### VIII. FINAL OBSERVATION From

the perspective of an unbiased state adjudicating under the Constitution of India, this matter has been

assigned **Medium Priority**. The case presents meaningful legal or constitutional issues that warrant attentive but not extraordinary expedition. The court should monitor the progress of this matter to ensure it does not languish, while recognising that cases involving imminent threats to life or liberty must take precedence.

Doctrines Engaged

Doctrine of Proportionality — Any state action restricting rights must be proportionate to the aim sought — it must be necessary, suitable, and not excessive.

Principle of Natural Justice — Audi Alteram Partem — No person shall be condemned without being heard. The right to be heard is a fundamental principle of justice.

Doctrine of Legitimate Expectation — A person who has a legitimate expectation based on a promise, practice or policy of the State is entitled to procedural fairness before that expectation is defeated.

Rule of Law — Every person, including the State, is subject to the law; no one is above it. Government action must have legal authority.

Rights Balancing Analysis

Primary Interest — Other Constitutional Rights: With severity 'No Injury', the primary constitutional concern shifts from the right to life (Article 21) to other guarantees such as equality (Article 14), freedom of trade (Article 19(1)(g)), or property rights (Article 300A) as applicable. While these rights are fundamental, they permit greater flexibility in prioritisation. **Power Imbalance — Article 14 Equality Concern:** There is a significant power imbalance between the parties. Article 14 requires the state to ensure equality before the law. Where one party is a government body, large corporation, or influential entity, the court must guard against the risk that institutional power could subvert the fairness of proceedings. The assigned priority adequately accounts for this concern. **Category-Specific Analysis — Property/Land:** Property rights under Article 300A are constitutional but not absolute. The priority should consider whether the dispute involves livelihood (Article 21) or mere property entitlement.

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